

Law & Motion Tentative Rulings

September 23, 2026 8:30 a.m.

Tentative rulings are not posted in unlawful detainer cases.

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

Apara v. The Catalyst Nightclub, et al. (21CV02807)

Plaintiffs’ Motions for New Trial and JNOV

Parties shall appear.

Weseloh et al. v. County of Santa Cruz et al. (18CV03315)

Defendant/Cross-Complainant County of Santa Cruz’s Motion to Vacate Preliminary Injunction Issued May 8, 2026, and for Preliminary Injunction Prohibiting Obstruction of Public Access

Plaintiff’s Motion to File Third Amended Complaint

Defendant County’s motion to vacate the existing preliminary injunction is granted, and its motion for a new preliminary injunction is granted. The County’s proposed order shall also include signage at both ends of the walk that specifies that public use of the 37 foot walk is limited in place (no public use of the area landward from the dividing line), time (from sunrise to sunset daily) and manner (no bicycle riding, skateboarding, roller skating; dogs on leash only). The order shall also specify that the County is responsible for maintenance of the portion of the walk that is seaward of the dividing line, and that the County will conduct regular inspections/patrols as it would for any other park.

Plaintiff’s motion to file a third amended complaint (TAC) is unopposed and granted. Plaintiff’s TAC shall be filed no later than October 9, 2026.

The court will set a further case management conference at the hearing, as well as discuss further proceedings such as County's anticipated responsive pleading to the TAC and trial setting.

I. Introduction

County of Santa Cruz seeks to vacate the existing preliminary injunction and issue a new one requiring plaintiffs to cease interfering or obstructing public access to the 37 foot walk. The terms proposed are:

- County shall be permitted to paint or otherwise lay down a visible line on the 37 foot walk approximately eight feet from the facades of plaintiffs' houses on the landward side of the 37 foot walk. Once the line has been laid, County will promptly notify plaintiffs' counsel, after which plaintiffs shall within five days of that notice, promptly remove the existing temporary fencing from both ends of the 37 foot walk. Plaintiffs shall not erect any other barriers at either end of the 37 foot walk, or otherwise interfere with public access to and over the 37 foot walk, except in conformity with the order.
- During the pendency of this litigation (including any appeal, petition to the California Supreme Court, and proceedings after remand), plaintiffs shall be permitted to exclusively occupy and use that portion of the 37 foot walk lying landward of the line laid down by the County. Plaintiffs shall be permitted to place non-permanent or removeable furnishings or barriers on or within the line for which a building permit or Coastal Development Permit is not otherwise required, so long as such items do not extend beyond the line into the remainder of the seaward side of the 37 foot walk.
- Plaintiffs may apply for an encroachment permit or permits from the County at any point prior or subsequent to the termination or vacation of the injunction and the County shall process any such application in a manner consistent with other similar applications. County's police power or discretion to review, deny, condition, or approve such applications shall be preserved.
- The new injunction shall expire at the earliest of (1) its vacation or dissolution by a court of competent jurisdiction (except that the County agrees not to seek vacation or dissolution as to plaintiffs' ability to occupy the approximately 8 feet

of the 37 Foot Walk during the pendency of this litigation, except insofar as necessary to address any emergency or issue of public health or safety) or (2) entry of a final, non-appealable order or judgment or other disposition of this litigation.

II. Legal Standards

The purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits. (*Jamison v. Department of Transportation* (2016) 4 Cal.App.5th 356, 361.) The decision whether to grant or deny a preliminary injunction rests in the sound discretion of the trial court. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 527.) A reviewing court will not reverse that decision except for an abuse of discretion. (*People v. Black's Food Store* (1940) 16 Cal.2d 59, 61.)

The burden of proof is on the moving party to show the elements necessary to support the issuance of a preliminary injunction. (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) These elements are (1) a reasonable probability of success on the merits; and (2) the risk of irreparable injury/lack of a legal remedy. (*IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69-70.) In ruling on the motion, the court is to evaluate the potential merits and interim-harm factors, and the greater the showing on one, the less that must be shown on the other. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) A court should only grant a preliminary injunction if the moving party shows a "reasonable probability" that it would prevail at trial and would suffer more harm from a denial than the respondent would suffer from its grant. (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205-206.) In evaluating interim harm, the court compares the injury to the moving party in the absence of an injunction to the injury the respondent is likely to suffer if an injunction is issued. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633.) Courts must consider the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo. (*Abrams v. St. John's Hospital & Health Center* (1994) 25 Cal.App.4th 628, 636.)

Injunctions requiring the cessation of the illegal blocking of a public right-of-way are prohibitory in nature notwithstanding the incidental performance of an affirmative act in removing the temporary fencing. (Civil Code, §§ 3479, 3480; Penal Code, §§ 370, 371, 372, 647c; *People v. Henderson* (1948) 85 Cal.App.2d 653, 656-657; *URS Corp. v. Atkinson/Walsh Joint Venture* (2017) 15 Cal.App.5th 872, 885.) Injunctions may issue against public nuisances,

such as fencing or obstructions to public rights of way. (*City of Monterey v. Carrnshimba* (2013) 215 Cal.App.4th 1068, 1086; *City of Claremont v. Kruse* (2009) 177 Cal.App.4th 1153, 1166; *People v. Henderson, supra*, 85 Cal.App.2d at p. 657.)

III. Discussion

As indicated several months ago, the court anticipated that permitting the fencing to remain in place would be short-lived. Based on the evidence presented here, the court's site visit, and the appellate opinion¹, the court finds that the balance of harms now favors County and the public. First, County is likely to prevail on the merits since the appellate opinion determined that County has an existing easement interest (public right-of-way) in the 37 foot walk. (Opinion, p. 36.) The Opinion necessarily means that based on the record, plaintiffs' evidence was insufficient to support the legal theory of equitable estoppel. (*McCoy v. Hearst Corp.* (1991) 227 Cal.App.3d 1657, 1661.) Fencing that blocks a public right of way constitutes a nuisance, regardless of plaintiffs' ownership of an underlying fee interest in the 37 foot walk. (*People v. Henderson, supra*, 85 Cal.App.2d at pp. 656-657.)

Second, assessing the harms, since the Opinion clearly set forth that a public right of way exists, the public is entitled to use it and is harmed by its impeded use. (*Anderson v. County of Santa Barbara* (2023) 94 Cal.App.5th 554, 578.) The court's direct observation of the impacts of barricading the 37-foot walk is that the public is forced to use Beach Drive for walking, running and biking, causing congestion with car traffic. Plaintiffs may not exclude the public from using the 37-foot walk provided that appropriate measures are in place to preserve plaintiffs' coexistent rights of use.

The court finds that County's proposed injunction serves this purpose with additional signage regarding hours of use (only sunrise to sunset) and regular inspections/patrols, which addresses plaintiffs' argument that County failed to fulfill the court's directive to craft time, place and manner use restrictions. As for plaintiffs' argument that the present injunction cannot be lifted until the merits are determined (based on the court's earlier order), the court is persuaded that obstruction of the public right of way is a greater harm. Plaintiffs' opposition declaration by Paula Pyers does not change this determination; the descriptions of speeding bikes, loitering, night time use, and unleashed dogs are not new and are issues for enforcement,

¹ *Weseloh v. County of Santa Cruz* (September 25, 2025, Sixth District Court of Appeal nos. H050433, H051907 [nonpub. opn.], ("Opinion").

not whether the public has a right to use the walk. Plaintiffs' expert declaration (Erik Zinn) that the areas which would be used by the public once the barricades are removed present tripping hazards also does not go the issue of the public's right to use the walk.

Fischer v. Saadian (25CV01908)

Defendant Tyler Saadian's Motion to Set Aside Default

The motion is granted. Defendant's motion mistake, inadvertence, surprise or excusable neglect. Defendant is ordered to file his responsive pleading no later than September 30, 2026.

I. Background

Plaintiff Artur Fisher obtained a default judgment against defendant Tyler Jason Saadian who now moves to set aside the judgment based on Code of Civil Procedure section 473, subdivision (b).

Timeline:

- 6/23/25 Plaintiff filed a complaint for breach of contract against defendant for his failure to remit rent to plaintiff, totaling \$46,039.00.
- 6/28/25 Proof of substitute service by registered process server.
- 4/7/26 Default judgment entered by the court.
- 8/27/26 Defendant filed this motion arguing faulty service and lack of any knowledge of the action until after the default was entered. (Defendant filed an earlier procedurally deficient motion which was promptly cured with this one.)

II. Discussion

Defendant's motion is based on Code of Civil Procedure section 473, subdivision (b), mistake, inadvertence, surprise or excusable neglect. The summons and complaint were served by a registered process server but describes leaving the documents with a receptionist, whose physical description matches no one who lives at the service address, which is a residence with no receptionist. (Declaration of Tyler Jason Saadian, ¶¶ 2-7.) Self-represented plaintiff Arthur Fischer filed a late opposition claiming that defendant admitted a woman could have received the papers at the address. But the woman described by defendant does not match the description provided by the process server. Plaintiff's other arguments – that defendant waited too long to bring this motion and that his proposed answer fails to assert any affirmative defenses – do not defeat the motion.

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party “upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (§ 473, subd. (b).) Any party to the action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

“The law favors judgment on the merits. Thus, on a motion or relief from default, ‘doubts must be resolved *in favor of relief*, with an order denying relief scrutinized on appeal more carefully than granting it.’” (*Lasalle v. Vogel* (2019) 36 Cal.5th 127, 134.) Relief is proper under section 473, subdivision (b) where defendant (or their attorney) was mistaken as to some fact material to the defendant’s duty to respond. “[W]here the defendant, with full knowledge of the proceedings, and without being misled by the opposing party or counsel, fails to take action to protect his interests until after the default, it is an abuse of discretion to set the default aside. [Cit. omitted.] Nor does the trial court have the legal power to set aside the default simply because the defendant did not realize the legal effect of failing to file an answer.” (*Yarbrough v. Yarbrough* (1956) 144 Cal.App.2d 610, 615.)

Defendant’s papers establish mistake, inadvertence, surprise or excusable neglect since the veracity of the process server’s return is in question based on the evidence. The motion is granted and defendant is ordered to file his responsive pleading no later than September 30, 2026.

Chen v. Tse (25CV02922)

Plaintiff Liu's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Chi Wai Fok And For Monetary Sanctions

Plaintiff Liu's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Transmarinis Re Investments, LLC And For Monetary Sanctions

Plaintiff Liu's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Savill An Qing Tse And For Monetary Sanctions

Plaintiff Chen's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Chi Wai Fok And For Monetary Sanctions

Plaintiff Chen's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Transmarinis Re Investment, LLC And For Monetary Sanctions

Plaintiff Chen's Motion To Compel Responses To Form And Special Interrogatories, Set One; Request For Production Of Documents, Set One; And To Deem The Truth Of Matters Specified In Requests For Admission, Set One Against Defendant Savill An Qing Tse And For Monetary Sanctions

The unopposed motions are granted as discussed below.

Plaintiffs served four sets of discovery [form and special interrogatories, set one; request for production of documents, set one; and requests for admission, set one] on defendants Chi Wai Fok, Transmarinis Re Investments, LLC, and Savill An Qing Tse. Responses were due May 12, 2026. After providing defendants with additional time to respond, plaintiffs have yet to receive any responses. (Decl. of Chin at ¶¶ 10.)

Plaintiffs filed these six discovery motions to compel these defendants to respond to the discovery requests and to deem as admitted the truth of the matters stated in requests for admission, set one. Plaintiffs also seek \$900.00 in sanctions against each defendant for each motion.

“If a party to whom interrogatories are directed fails to serve a timely response, . . . the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code of Civ. Proc. §§ 2030.290, subd. (a).) The party propounding the discovery can move for an order compelling a response. (*Id.*, subd. (b).)

“If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . the party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code of Civ. Proc. § 2031.300, subd. (a).)

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc. § 2033.280, subd. (b).)

Monetary sanctions are mandatory when properly requested and if there is no substantial justification for the party’s failure to respond to the discovery. (Code of Civ. Proc. §§ 2030.290, subd. (c); 2031.300, subd. (c); 2033.280, subd. (c).)

Plaintiffs demonstrated they propounded the discovery at issue on defendants Chi Wai Fok, Transmarinis Re Investments, LLC, and Savill An Qing Tse; who failed to respond. (See Decl. of Chin and attached exhibits.) Defendants also failed to oppose or respond to this motion. Defendants are ordered to serve verified, code-compliant responses to the form and special interrogatories, set one, as well as the requests for production of documents, set one within 20 days from the date of this hearing.

The matters specified in plaintiffs’ requests for admission, set one, to defendants Chi Wai Fok, Transmarinis Re Investments, LLC, and Savill An Qing Tse are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the court unless these defendants serve, before the hearing on the motion, proposed responses to the requests for admission that are in substantial compliance with Code of Civil Procedure section 2033.220.

Plaintiffs request sanctions in the amount of \$900.00 per motion against defendants – a total of \$5,400.00 (or \$1,800.00 against each defendant). The motions are boilerplate and there are no oppositions. Plaintiffs’ counsel’s billing rate is \$250.00/hour which is reasonable. The court awards 9 hours of time at \$250.00/ hour for a total of \$2,250.00. Defendants Chi Wai Fok, Transmarinis Re Investments, LLC, and Savill An Qing Tse are each ordered to pay one-third of this amount or \$750.00/each to plaintiffs’ counsel within 20 days from the date of this hearing.

Soquel Gardens MHC, LLC v. County of Santa Cruz et al. (25CV04134)

Petition For Writ of Mandate

The petition is granted in part. The matter is remanded so the hearing officer can reconsider the issues within the scope of his authority and render a new decision.

I. Introduction/Background

Petitioner owns and operates the Soquel Gardens Manufactured Housing Community (park). The petition challenges the scope of a decision and order by the County of Santa Cruz’s administrative hearing officer. The hearing officer ruled that petitioner double charged park residents for sewer service and ordered it to reimburse residents with interest and discontinue charging monthly fees for sewer service while also charging residents the County Sanitation District’s fee that appears on the property tax bill. Petitioner argues that the County Code regulating adjusting rents in mobile home parks does not permit the hearing officer to regulate utility billing, adjudicate double billing, award money or interest, or interpret or enforce mobile home residency law provisions. The single issue presented in the writ is whether the hearing officer exceeded his authority in ordering reimbursement with interest and in regulating petitioner’s utility billing practices.

A. *General rent adjustment notice*

As of the park’s 2025 rent roll, each resident was paying \$373.00 in monthly space fee rent and each was also charged a separate “miscellaneous charge” of \$57.15. (AR 43.) That same miscellaneous \$57.15 charge also appeared on residents’ rent invoices as a separate line item added to their space rent beginning in March 2025 (petitioner acquired the park following a bankruptcy). On each resident’s rent invoice, the charge was labeled “sewer fee.” (AR 78, 79.)

In preparation for raising rents in late 2025, petitioner mailed residents a “General Rent Adjustment” on July 22, 2025. (AR 41, 42, 63.) The proposed rent increase was \$132.26 per

month and per space, for a total monthly rent of \$505.58. (AR 41, 42.) A prorated portion of the Park's total annual property tax bill was added to the residents' base rent, minus the property tax charged for the 1981/1982 tax year as specified in County Code section 13.32.030, subdivision (D)(2). (AR 41.) The park's total property tax liability for 2025 was listed as \$40,093.60. (AR 41.) The notice did not include reference to the \$57.15 "miscellaneous charge" listed on the park's rent roll or the \$57.15 "sewer fee" assessed on residents' invoices. (AR 41, 42, 43.)

Residents thereafter filed a petition for hearing regarding the notice, alleging double billing of the sewer fee. (AR 64.) Residents asserted that the sewer fee added to monthly rent invoices constituted double billing of a fee already part of the prorated portion of the park's property tax bill and included in their monthly space fees. (AR 82.)

B. Administrative hearing decision

The hearing officer ruled "the charge for monthly sewer service is duplicate of the Santa Cruz County Sanitation District fee that appears on the property tax bill which is then charged pro rata to the residents. [Petitioner] has been double charging the residents for sewer service." (AR 20.)

Petitioner makes much of the hearing officer's description of the difference between a tax and service fee, attempting to bolster its argument that the hearing officer exceeded his authority. (Opening Brief, at pp. 3, 7-8.) But the court reads that description as merely providing context for the parties' contentions at hearing; the park argued the charge in question was a tax required to be passed through, but that an identical fee was a sewage service fee. All the hearing officer explained was that the sanitation district fee, based on various California Constitution levies such as Prop 218 and Prop 26, was placed on the County tax roll as a means of collection.

II. Legal Standards

Administrative adjudications are reviewable by administrative mandamus under Code of Civil Procedure section 1094.5. The court's inquiry is limited to whether the respondent has proceeded without, or in excess of jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. (Code Civ. Proc., § 1094.5, subd. (b).) The court applies the independent judgment standard on questions of statute or regulatory interpretation. (*Christensen v. Lightbourne* (2017) 15 Cal.App.5th 1239, 1251.)

The local ordinances at issue are Santa Cruz County Code (County Code) Chapter 13.32, the mobile home rent adjustment ordinance.² The chapter's purpose is to "protect the residents of mobile homes from unreasonable space rent increases and/or assessments, recognizing the need of mobile home park owners to receive a just and reasonable return on their property." (County Code § 13.32.010, subd. (D).) Rent "includes charges made by the park owner for utility services in excess of the actual net costs of the park owner of providing such utility services as provided by SCCC § 13.32.030, subd. (D)(9)." (County Code § 13.21.020.) "Government required service charges are those charges which are legally levied and actually billed to a park owner by a governmental agency, such as fees, bonds, and assessments. Such charges shall be passed through to residents." (County Code § 13.32.030, subd. (D)(6).) The ordinance provides a specific formula for rent increases, as well as required noticing to residents. (County Code § 13.32.030, subd. (E)(F).) "The owner shall not adjust rents in excess of the amount permitted pursuant to this general rent adjustment procedure, except as expressly provided elsewhere in this chapter." (County Code § 13.32.030, subd. (G).)

III. Discussion

"The Hearing Officer shall consider the evidence and arguments of the parties and shall prepare a written decision, which shall include a statement of the issues, the findings of facts on which the decision is based, and *an identification of the approved adjustment, if any, resulting from the decision to the particular item on the rental notice*. If the decision concerns an adjustment which is limited in duration or otherwise conditioned in any respect, the Hearing Officer shall also set forth in the decision the duration or condition approved." (County Code § 13.32.060, subd. (B)(18), italics added.)

The decision did not include an identification of the approved adjustment. Instead, it ordered that petitioner must reimburse residents for the double billing plus interest. It also directed that petitioner shall not charge monthly fees for sewer service while also charging pro rata for the same fee that appears on the park's property tax bill. (AR 20.)

The court finds the decision went beyond the ordinance's grant of power in disputes related to general rent adjustments. "A hearing shall be provided as to disputes regarding general rent adjustment, [...], and for no other purposes. *A general rent adjustment hearing shall be limited to determining whether the owner conformed to the provisions of SCCC § 13.32.030 in*

² The court takes judicial notice of the relevant County Codes.

adjusting rents.” (County Code § 13.32.060, subd. (A)(1), italics added.) All that a hearing officer may do in such a hearing is to determine if the owner conformed to the code in adjusting rents and identify any approved adjustment. There is no code provision that permits reimbursement or direction as to what or how to collect various charges. Instead, that is left for enforcement, either by County Counsel for code violations, or park residents by civil action. (County Code § 13.32.080, subds. (A)(B).) “[A]dministrative agencies have only such powers as have been conferred on them, expressly or by implication, by constitution or statute. An administrative agency, therefore, must act within the powers conferred upon it by law and may not validly act in excess of such powers.” (*Ferdig v. State Personnel Board et al.* (1969) 71 Cal. 2d 96, 103-104; see also *City and County of San Francisco v. Board of Permit Appeals* (1989) 207 Cal.App.3d 1099, 1109-1110.)

Accordingly, the court finds the hearing officer’s order exceeded the authority granted him in the County Code. The court remands this matter so the hearing officer can reconsider the issues within the scope of his authority and render a new decision.